

**BEFORE THE
FEDERAL MARITIME COMMISSION**

HAPAG-LLOYD, A.G., AND
HAPAG-LLOYD (AMERICA) LLC –

POSSIBLE VIOLATIONS OF 46 U.S.C. § 41102(C)

DOCKET NO. 21-09

**ANSWER OF RESPONDENTS HAPAG-LLOYD AG AND HAPAG-LLOYD
(AMERICA) LLC TO ORDER OF INVESTIGATION AND HEARING**

Respondents Hapag-Lloyd AG and Hapag-Lloyd (America) LLC, through the undersigned attorneys, hereby submit this Answer to the Federal Maritime Commission’s Order of Investigation and Hearing in the above-captioned docket (“Order”). Respondents are sometimes referred to jointly as “Hapag-Lloyd” or “Respondents”).

Answer

1. Paragraph 1 of the Order is a recitation of Section 41102(c) of the Shipping Act of 1984, as amended (the “Act”) that makes no factual allegation against either Respondent and requires no response. The statute speaks for itself.
2. Paragraph 2 of the Order purports to describe an interpretative rule issued by the Federal Maritime Commission (“FMC” or “Commission”) and makes no factual allegation against either Respondent. Hence, no response is required. The documents cited in Paragraph 2 speak for themselves.

3. Paragraph 3 of the Order purports to further describe the interpretative rule described in paragraph 2 of the Order, and certain other legal principles. This paragraph makes no factual allegations against either Respondent and requires no response. The documents cited in Paragraph 3 speak for themselves.

4. With respect to Paragraph 4 of the Order, Respondent Hapag-Lloyd AG admits that it is a vessel-operating common carrier headquartered at Ballindamm 25, 2000 Hamburg 1, Germany. Respondent Hapag-Lloyd (America) LLC admits that it has an office at 5515 Spalding Drive, Peachtree Corners, GA 30092.

5. With respect to Paragraph 5 of the Order, Respondent Hapag-Lloyd AG admits that it is a member of THE Alliance. Respondents lack a sufficient basis to admit or deny the market share statistics cited in Paragraph 5 but, to the extent a response is required, deny.

6. With respect to Paragraph 6 of the Order, Respondents lack a sufficient basis to admit or deny information received by the Commission, but deny any violation of the Shipping Act with respect to container returns.

7. Paragraph 7 of the Order makes no factual allegations with respect to Respondents and requires no response. However, because this Paragraph contains certain inaccuracies which could be prejudicial to Respondents, Respondents deny the allegations of this Paragraph.

8. Paragraph 8 contains no factual allegations with respect to Respondents and requires no response. However, because this Paragraph contains certain inaccuracies which could be prejudicial to Respondents, Respondents deny the allegations of this Paragraph. The documents cited in Paragraph 8 speak for themselves.

9. Paragraph 9 contains no factual allegations with respect to Respondents and requires no response. However, because this Paragraph contains certain inaccuracies which could be prejudicial to Respondents, Respondents deny the allegations of this Paragraph. The documents cited in Paragraph 9 speak for themselves.

10. Respondents admit there is a list of containers attached to the Order as alleged in the second sentence of Paragraph 10, and admit that invoices for detention charges ranging from \$160.00 to \$1,845 were issued for the containers on that list as alleged in the second and third sentences of Paragraph 10. Respondents deny all other allegations contained in Paragraph 10 of the Order.

11. The first and third sentences of Paragraph 11 contain no factual allegations with respect to Respondents and require no response. Respondents deny the second sentence of Paragraph 11.

12. The remaining Paragraphs of the Order require no response.

Affirmative Defenses

1. The Commission lacks subject matter jurisdiction.
2. The Commission lacks personal jurisdiction over Respondent Hapag-Lloyd (America) LLC.
3. Any inability to return empty containers within free time was due in whole or in part to the acts and/or omissions of the motor carrier and/or the cargo interest(s).
4. Respondents' conduct was reasonable in light of the totality of the circumstances.

WHEREFORE, Respondents pray that after due oral hearing to be conducted in Washington, D.C., an order be made dismissing the Order.

Respectfully submitted,

By: 

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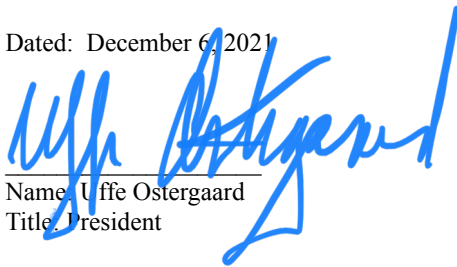
Dated: December 6, 2021

VERIFICATION OF RESPONDENT HAPAG-LLOYD (AMERICA) LLC

Uffe Ostergaard hereby verifies as follows:

1. I am President of Hapag-Lloyd (America) LLC.
2. I am authorized to make this verification on behalf of Hapag-Lloyd (America) LLC.
3. I hereby verify that the facts contained in the foregoing answer and affirmative defenses are true and correct to the best of my knowledge, information, and belief.
4. I verify the foregoing under penalty of perjury under the laws of the United States.

Dated: December 6, 2021



Name: Uffe Ostergaard

Title: President

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that on this 6th day of December, 2021, a true and correct copy of the foregoing Answer was served via electronic mail on:

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A handwritten signature in black ink, appearing to read "Wayne R. Rohde", written over a horizontal line.

Wayne R. Rohde